

S E R V E D  
December 11, 2012  
FEDERAL MARITIME COMMISSION

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**DOCKET NO. 12-09**

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**CENTURY METAL RECYCLING PVT. LTD**

**v.**

**DACON LOGISTICS, LLC d/b/a CODA FORWARDING; GREAT AMERICAN  
ALLIANCE INSURANCE COMPANY; AVALON RISK MANAGEMENT;  
HAPAG-LLOYD AMERICA, INC.; and MITSUI OSK LINES**

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**ORDER GRANTING REQUEST TO  
DISMISS COMPLAINT AGAINST HAPAG-LLOYD AMERICA, INC.**

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On December 7, 2012, complainant Century Metal Recycling Pvt. Ltd (Century Metal) filed a request to dismiss its complaint against respondent Hapag-Lloyd America, Inc. Century Metal states that "Hapag-Lloyd America, Inc. and Century Metal have reached a resolution whereby the containers at issue will be released. Therefore, Century Metal wishes to dismiss its claim only as to Hapag-Lloyd America, Inc. voluntarily and urge[s] the Administrative Law Judge to order such dismissal." (Request for Dismissal at 1.)

Good cause having been stated, it is hereby

**ORDERED** that the Complaint against respondent Hapag-Lloyd America, Inc., be **DISMISSED** without prejudice. 46 C.F.R. § 502.72(a)(2). It is

**FURTHER ORDERED** that the Motion to Dismiss filed on November 9, 2012, by Hapag-Lloyd America, Inc., be **DISMISSED** as moot.

  
Clay G. Guthridge  
Administrative Law Judge